

for raising portions as between them and the freeholder are not entitled to the custody of the title deeds, and cannot deliver them to a mortgagee. But they and their mortgagees have a right in equity to the production of them for all necessary purposes (*b*).

11. **36 & 37 Vict. c. 66.** — By 36 & 37 Vict. c. 66, s. 34, subs. 3, all causes and matters for raising portions are to be assigned to the Chancery Division of the High Court of Justice.

(*b*) *Churchill v. Small*, 8 Ves. 322, & J. 117; *Hotham v. Somerville*, 5 note (*b*); *Harper v. Faulder*, 4 Mad. Beav. 360.
129, 138; *Wiseman v. Westland*, 1 Y.